

Judgment Sheet

IN THE LAHORE HIGH COURT
JUDICIAL DEPARTMENT

W.P.No.11565 of 2011

Allah Ditta
Vs.
Mukhtiyar Ahmad, etc.

J U D G M E N T

Date of hearing	06.10.2016
Petitioner By:	Mr. Muhammad Siddique Kamyana, Advocate. Ch. Tanveer Ahmad Hanjra, Advocate for petitioner in W.P.No.15646/2011 Malik Muhammad Afzal, Advocate for petitioner in W.P.No.21326/2011
Respondents By:	Mr. Noor Ahmad Malik, Advocate for respondent No.1. Mr. Faisal M. Butter, A.A.G.

Faisal Zaman Khan, J:- Through this consolidated judgment, I intend to decide the instant petition alongwith W.P. Nos.15646/2011 and 21326/2011, as a common question of law and facts is involved in these petitions.

2. Succinctly, the facts of the cases are that litigation for appointment of Lambardar of Chak No.83/EB Tehsil Arifwala, District Pakpattan remained pending before different *foras*, however, respondent No.2 while taking *suo motu* notice declared the office of Lambardar of said Chak vacant and directed the revenue

functionaries to initiate proceedings for appointment of Lambardar. Subsequent to this, recommendations were made by Tehsildar and Deputy District Officer (Revenue) **[DDO(R)]** in favour of Allah Ditta (petitioner in W.P.No.11565/2011), which were forwarded to District Officer (Revenue) **[DO(R)]**, Pakpattan, however, on administrative grounds the matter was transferred to DO(R), Bahawalnagar, who vide order dated 04.03.2004 appointed respondent No.1 (Mukhtiyar Ahmad) as Lambardar. The said order was assailed by the petitioners and other candidates before the Executive District Officer (Revenue) **[EDO(R)]**, Sahiwal, who vide order dated 15.12.2006 remanded the case to DO(R), Pakpattan for decision afresh. In post remand proceedings, DO(R), Pakpattan vide order dated 29.05.2007 again appointed respondent No.1 as Lambardar, upon which appeals were preferred by the petitioner and others before EDO(R), who dismissed the same vide order dated 01.04.2010, whereupon, revision petitions were filed by the petitioners and others before respondent No.2, which were dismissed through a consolidated order dated 15.03.2011, hence, these petitions.

3. Learned counsel for the petitioners submits that order passed by respondent No.2 is without any reason insofar as that he instead of giving any independent finding on the status of the parties, keeping in view Rule 17 of the West Pakistan Land Revenue Rules,

1968, has merely reproduced the history of the case and endorsed the view of the *foras* below, therefore, the order is not sustainable.

4. Conversely, learned counsel for respondent No.1 as well as learned Law Officer, who is appearing on behalf of official respondents, unanimously support the impugned order by submitting that valid reasons have been assigned by the *foras* below, therefore, even if no independent finding has been given by respondent No.2, it will not render the impugned order ineffective especially so when neither it is perverse nor illegal, therefore, no interference is required by this Court.

5. Arguments heard. Record perused.

6. For convenience, operative part of impugned order dated 15.03.2011 is reproduced below:-

“5. Arguments heard and record perused. A very hotly contested case roots of which goes back to the litigation which started in 1986. Mukhtiyar Ahmed respondent was firstly appointed as Lambardar on 04.03.2004 by the orders of District Officer (Revenue), Bahawalnagar. Subsequently, District Officer (Revenue), Pakpattan on a remand again appointed him as Lambardar on 29.05.2009 which orders were confirmed by Executive District Officer (Revenue), Pakpattan vide orders dated 01.04.2010. A comprehensive comparison of all the candidates has been carried out by all the three learned lower courts and through their concurrent judgments have decided in favour of the respondent. It is the Collector of the District who has to take work out of Lambardar through revenue administration therefore unless there is some material irregularity the recommendations of the Collector shall not be interfered

with. This concept has been upheld by superior courts in a number of judgments. The contention of the counsel for the petitioner that petitioner was recommended by revenue hierarchy upto Deputy District Officer (Revenue) of the Tehsil have some weightage but overruling of these recommendations by the Collector who is not only an appointing authority but is also supervising officer will take preference. The orders of the Collector shall not be interfered unless these are perverse or illegal. In present case two learned District Collectors i.e. Bahawalnagar and Pakpattan and the learned Executive District Officer (Revenue), Pakpattan have decided in favour of respondent. Moreover respondent is the only candidate who has an adequate experience of working as a Lambardar, has nothing outstanding against him and is not tainted with any character failing illegality or irregularity in his conduct. He belongs to a family which is in majority in the village and exercise noticeable influence as almost half of the applicant withdrew their candidature in his favour. I do not find any infirmity in the orders passed by District Officer (Revenue) Bahawalnagar dated 04.03.2004, District Officer (Revenue), Pakpattan dated 29.05.2007 and Executive District Officer (Revenue) dated 01.04.2010. Revision petitions are dismissed. Copies of these orders shall be forwarded to Executive District Officer (Revenue) and District Officer (Revenue), Pakpattan for further necessary action. (Emphasis supplied)

7. A JUDGMENT has been defined in **Section 2(9)** of the Code of Civil Procedure 1908 (CPC):-

“Judgment” means the statement given by the judge of the grounds of a decree or order.”

Similarly an ORDER has also been defined in **Section 2(14) CPC** which for convenience is reproduced:-

“Order” means the formal expression of any decision of a Civil Court which is not a decree:

8. **Order XX Rule 4 CPC** explains what the ingredients of a judgment are. For convenience, said provision is reproduced:-

4. Judgments of Small Cause Court---(1) Judgments of a Court of Small Causes need not contain more than the points for determination and the decision thereon.

Judgments of other Courts.---(2) Judgments of other Courts shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision.

9. In **Order XLI Rule 31 CPC** expression Judgment passed by an Appellate Court has been explained amplifying the necessary ingredients of a judgment, which for convenience is reproduced:-

“R.31. Contents, date and signature of Judgment.—The judgment of the Appellate Court shall be in writing and shall state---

- (a) the points for determination;***
- (b) the decision thereon;***
- (c) the reasons for the decision; and***
- (d) where the decree appealed from is reversed or varied, the relief to which the appellant is entitled;***

and shall at the time it is pronounced be signed and dated by the Judge or by the Judges concurring therein.

10 The cumulative reading of the above provisions would show that a judgment/order passed by a Court or forum “SHALL” contain the following:-

- a. concise statement of case;***
- b. the points for determination;***

- c. *Finding on each point pressed/argued by the parties; and*
- d. *the reasons for the decision.*

11. While giving guide lines for a JUDGMENT passed by the Courts/forums Honourable Supreme Court of Pakistan in judgment reported as Messrs MFMY Industries Ltd. and others v Federation of Pakistan through Ministry of Commerce and others (2015 SCMR 1550) has held as follows:-

“5. Termination of a lis undoubtedly is through a verdict of a court which is a decision disposing of a matter in dispute before it (the Court) and in legal parlance, it is called a “JUDGMENT”. It is invariably known that a judge finally speaks through his judgment. According to Black’s Law Dictionary, a judgment has been defined to mean “A court’s final determination of the rights and obligations of the parties in a case” and per Henry Cambell Black, A treatise on the Law of Judgment “An action is instituted for the enforcement of a right or the redress of an injury. Hence a judgment, as the culmination of the action declares the existence of the right, recognizes the commission of the injury, or negatives the allegation of one or the other. But as no right can exist without a correlative duty, nor any invasion of it without a corresponding obligation to make amends, the judgment necessarily affirms, or else denies, that such a duty or such a liability rests upon the person against whom the aid of the law is invoked”. These definitions are adequately self-explanatory. In our procedural law (civil), judgment as defined in Section 2(9) of Code of Civil Procedure means “the statement given by the judgment of the grounds of a decree or order”. It should be emphasized here that a judgment should supply adequate reasons for the conclusion reached and arrived at and should be reflective of application of proper judicial mind by the Judge and it should not be a mechanical and not speaking judgment in nature.

It may be reiterated that without a judgment, there is no concept of justice and/or fruitful outcome of litigation which

without any fear of contradiction means that the State lacks an effective justice system. In such a situation, I would, rather, go to the extent of saying that if the Judge/the Court does not pronounce a judgment for resolving the legal and factual issues involved in a dispute before it at all, the very purpose of the judicial branch of the State will be frustrated and eroded. If there is no judgment in terms of law, the entire judicial setup shall be rendered farce and illusionary, which obviously shall in turn disturb the equilibrium between the pillars of the State upon which it rests, resulting into serious impairment of the functioning of the State.”

12. In another judgment, reported as Khadim Hussain v Ch. Muhammad Ibrahim and others (1986 SCMR 1736) the Honourable Apex Court has observed as follows:-

“ ‘Judgment’ has been defined in section 2, clause (9) of the Civil Procedure Code as judgment’ means the statement given by the Judge of the grounds of a decree or order and Order has been defined in clause 14 of the same section as formal expression of any decision of a civil Court which is not a decree’. Further, Order XX, Rule 4, sub-rule (2) prescribes that judgment of Courts other than the Court of a small causes’ shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision’. Rule 5 of the same Order provides in suits in which issues have been framed the Court shall state its finding or decision upon any one or more of the issues sufficient for the decision of the suit.”

13. The afore-noted view has also been followed in recent judgments reported as Mst. Sarwar Bano through Attorney v Province of Sindh through Member Board of Revenue, Hyderabad and 5 others (PLD 2015 Sindh 445), Ali Noor (Pvt.) Ltd. through Authorized person v Trading Corporation of Pakitan (Pvt.) Ltd. through Chief Executive/Director (PLD 2015 Sindh 451) & Ghous Bakhsh v Syed Ali Nawaz Shah and 8 others (PLD 2014 Sindh 306).

14. From the above, it is manifest that Court/Authority/Forum while passing a judicial order needs to consider the facts narrated before him, peruse the record, if deciding as an appellate court judgment or finding rendered by the *foras* below, arguments of the parties, pro and contra and thereafter give his own independent reasons/findings.

15. From the cumulative reading of the impugned order, law and judgments cited *supra*, it is abundantly clear that no independent reasons/findings whatsoever have been given by respondent No.2 for dismissing the revision petitions. Similarly it has not been mentioned that on what basis a finding has been rendered by respondent No.2 that respondent No.1 is the only candidate who has adequate experience of working as a Lambardar, nothing is outstanding against him, is of good character and belongs to a family which is in majority in the village exercising noticeable influence. A perusal of the impugned order would show that he has relied on the judgments passed by the *foras* below and has not endeavored to scan the record himself in order to fortify the findings rendered by the *foras* below. Similarly, no reasons have been given signifying that why are petitioners not suitable candidates and cannot be considered for appointment.

16. Apart from the above, the impugned order is also violative of section 24-A of General Clauses Act, 1897 which also mandates a

Court/Authority/Forum to pass an order/judgment with reasons.

Reliance in this regard can be placed on Muhammad Amin Muhammad Bashir Ltd., Karachi v. Government of Pakistan through Secretary Ministry of Finance Central, Secretariat, Islamabad and others (PLJ 2015 SC 535) and Secretary Ministry of Health, Government of Pakistan, Islamabad and another v. Dr. Rehana Hameed and others (2010 SCMR 511).

17. For what has been discussed above, these petitions are **allowed**; consolidated order dated 15.03.2011 passed by respondent No.2 is declared to be passed in negation of law and the judgments on the subject being without reasons, therefore, the same is **set aside**.

18. **ROR Nos. 996, 1407, 1455 and 1456 of 2010** shall be deemed to be pending before respondent No.2 who shall decide the same in view of the observations made in this judgment preferably within a period of six months from the receipt of a certified copy of this judgment.

Shafaqat Ali*

(FAISAL ZAMAN KHAN)
JUDGE

Approved for Reporting